National Transportation Safety Board
Aviation Accident Final Report

Location:	Elyria, OH	**Accident Number:**	CHI08CA048
Date & Time:	12/11/2007, 1430 EST	**Registration:**	N2699G
Aircraft:	Smith, Ted Aerostar Aerostar 601	**Aircraft Damage:**	Substantial
Defining Event:		**Injuries:**	1 None
Flight Conducted Under:	Part 91: General Aviation - Personal		

Analysis

The pilot reported that he departed on an instrument flight rules flight plan into a low overcast cloud ceiling. He commented that he lost visual contact with the ground immediately upon liftoff. During the initial climb, the airplane momentarily entered a nose-down attitude. He subsequently corrected the nose down attitude. However, as the airplane began to climb again the right wing impacted a tree. This occurred approximately 1 mile from the airport and within 1 minute of takeoff. After the in-flight collision, he had "full function" of the airplane and elected to continue the planned 31-minute flight to the intended destination. He added that there were no anomalies related to flight control or engine operation during the flight. A post accident inspection revealed impact damage to the leading edge of the right wing, right engine nacelle, and right propeller spinner. In addition, the inspection revealed a 3-inch crack in the aft wing spar at the right main landing gear wheel well.

Probable Cause and Findings

The National Transportation Safety Board determines the probable cause(s) of this accident to be: The pilot's momentary loss of control after takeoff, which resulted in an in-flight collision with a tree. A contributing factor was the presence of the tree.

Findings

Occurrence #1: LOSS OF CONTROL - IN FLIGHT
Phase of Operation: TAKEOFF - INITIAL CLIMB

Findings
1. (C) AIRCRAFT CONTROL - NOT MAINTAINED - PILOT IN COMMAND

Occurrence #2: IN FLIGHT COLLISION WITH TERRAIN/WATER
Phase of Operation: TAKEOFF - INITIAL CLIMB

Findings
2. (F) OBJECT - TREE(S)

Factual Information

Pilot Information

Certificate:	Private	**Age:**	58, Male
Airplane Rating(s):	Multi-engine Land; Single-engine Land	**Seat Occupied:**	Left
Other Aircraft Rating(s):	None	**Restraint Used:**	Seatbelt
Instrument Rating(s):	Airplane	**Second Pilot Present:**	No
Instructor Rating(s):	None	**Toxicology Performed:**	No
Medical Certification:	Class 3 With Waivers/Limitations	**Last FAA Medical Exam:**	12/01/2005
Occupational Pilot:		**Last Flight Review or Equivalent:**	10/01/2006
Flight Time:	2411 hours (Total, all aircraft), 789 hours (Total, this make and model), 2314 hours (Pilot In Command, all aircraft), 1 hours (Last 90 days, all aircraft), 0 hours (Last 30 days, all aircraft), 0 hours (Last 24 hours, all aircraft)		

Aircraft and Owner/Operator Information

Aircraft Make:	Smith, Ted Aerostar	**Registration:**	N2699G
Model/Series:	Aerostar 601	**Aircraft Category:**	Airplane
Year of Manufacture:		**Amateur Built:**	No
Airworthiness Certificate:	Normal	**Serial Number:**	61-0163-083
Landing Gear Type:	Retractable - Tricycle	**Seats:**	5
Date/Type of Last Inspection:	12/01/2007, Annual	**Certified Max Gross Wt.:**	5500 lbs
Time Since Last Inspection:		**Engines:**	2 Reciprocating
Airframe Total Time:		**Engine Manufacturer:**	Continental
ELT:	Installed, activated, did not aid in locating accident	**Engine Model/Series:**	IO-540-S1-A5
Registered Owner:	On file	**Rated Power:**	290 hp
Operator:	On file	**Operating Certificate(s) Held:**	None

Meteorological Information and Flight Plan

Conditions at Accident Site:	Instrument Conditions	**Condition of Light:**	Day
Observation Facility, Elevation:	LPR, 793 ft msl	**Distance from Accident Site:**	1 Nautical Miles
Observation Time:	1453 EST	**Direction from Accident Site:**	
Lowest Cloud Condition:		**Visibility**	1.25 Miles
Lowest Ceiling:	Overcast / 200 ft agl	**Visibility (RVR):**	
Wind Speed/Gusts:	5 knots /	**Turbulence Type Forecast/Actual:**	/
Wind Direction:	190°	**Turbulence Severity Forecast/Actual:**	/
Altimeter Setting:	30 inches Hg	**Temperature/Dew Point:**	4°C / 3°C
Precipitation and Obscuration:	Mist		
Departure Point:	Elyria, OH (LPR)	**Type of Flight Plan Filed:**	IFR
Destination:	Pontiac, MI (PTK)	**Type of Clearance:**	IFR
Departure Time:	1430 EST	**Type of Airspace:**	

Airport Information

Airport:	Lorain County Regional (LPR)	**Runway Surface Type:**	
Airport Elevation:	793 ft	**Runway Surface Condition:**	
Runway Used:	NA	**IFR Approach:**	None
Runway Length/Width:		**VFR Approach/Landing:**	None

Wreckage and Impact Information

Crew Injuries:	1 None	**Aircraft Damage:**	Substantial
Passenger Injuries:	N/A	**Aircraft Fire:**	None
Ground Injuries:	N/A	**Aircraft Explosion:**	None
Total Injuries:	1 None	**Latitude, Longitude:**	41.344167, -82.177500

Administrative Information

Investigator In Charge (IIC):	Tim Sorensen	**Report Date:**	01/31/2008
Additional Participating Persons:	Troy Zwicke; FAA-Cleveland FSDO; Cleveland, OH		
Publish Date:			
Note:	This accident report documents the factual circumstances of this accident as described to the NTSB.		
Investigation Docket:	NTSB accident and incident dockets serve as permanent archival information for the NTSB's investigations. Dockets released prior to June 1, 2009 are publicly available from the NTSB's Record Management Division at pubinq@ntsb.gov, or at 800-877-6799. Dockets released after this date are available at http://dms.ntsb.gov/pubdms/.		

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The Independent Safety Board Act, as codified at 49 U.S.C. Section 1154(b), precludes the admission into evidence or use of any part of an NTSB report related to an incident or accident in a civil action for damages resulting from a matter mentioned in the report. A factual report that may be admissible under 49 U.S.C. § 1154(b) is available here.